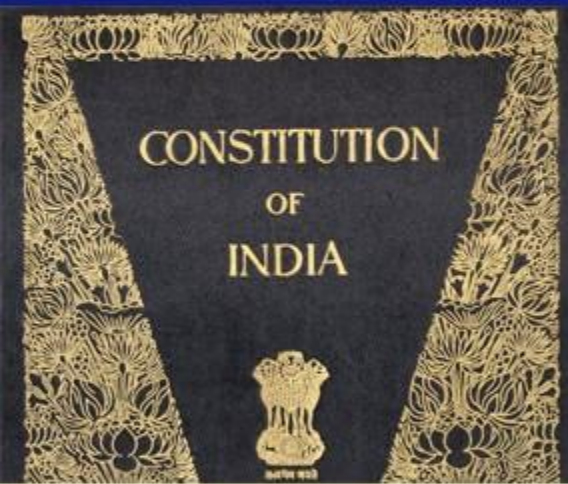


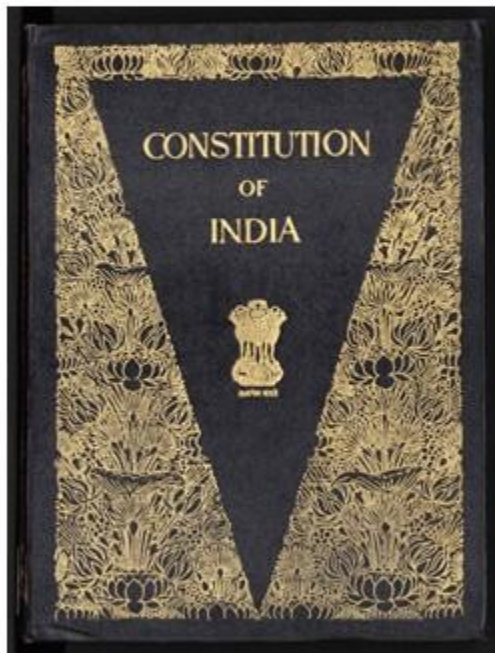
INDIAN POLITY



MODULE - 50

**AMENDMENT OF THE
CONSTITUTION**

AMENDMENT OF THE CONSTITUTION



- 1 Like any other written Constitution, the Constitution of India also provides for its amendment in order to adjust itself to the changing conditions and needs.
- 2 However, the procedure laid down for its amendment is neither as easy as in Britain nor as difficult as in USA.
- 3 In other words, the Indian Constitution is neither flexible nor rigid but, a synthesis of both.
- 4 Article 368 in Part XX of the Constitution deals with the powers of Parliament to amend the Constitution and its procedure.

AMENDMENT OF THE CONSTITUTION



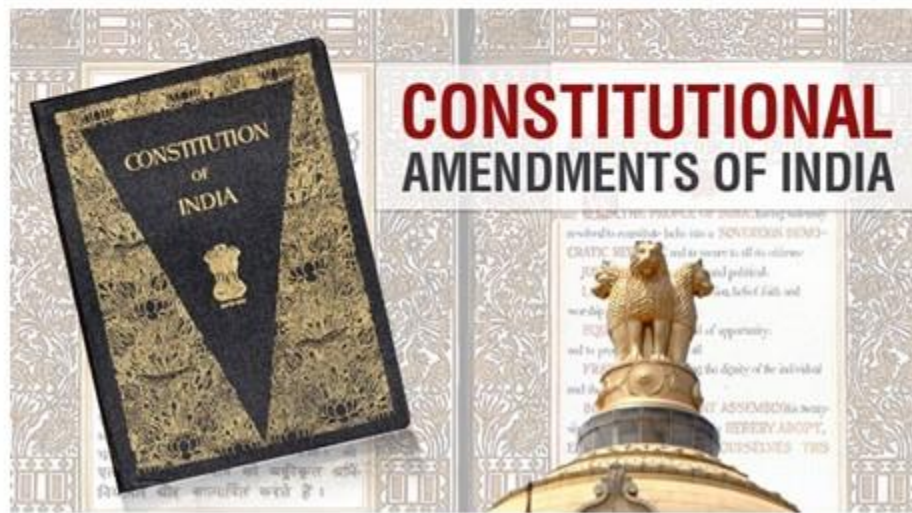
- 5 It states that the Parliament may, in exercise of its constituent power, amend by way of addition, variation or repeal any provision of the Constitution in accordance with the procedure laid down for the purpose.
- 6 However, the Parliament cannot amend those provisions which form the “Basic Structure” of the Constitution.
- 7 This was ruled by the Supreme Court in Kesavananda Bharati Case (1973).

PROCEDURE FOR AMENDMENT

The procedure for the amendment of the Constitution as laid down in Article 368 is as follows:

EACH AND EVERY POINT IS IMPORTANT FOR MCQs!!

- 1 An amendment of the Constitution can be initiated only by the introduction of a bill for the purpose in either House of Parliament and not in the State Legislatures.



- 2 The bill can be introduced either by a minister or by a private member and **does not require** prior permission of the President.
- 3 The bill must be passed in each House by a **special majority**, that is, a majority (that is, more than 50%) of the total membership of the House and a majority of two-thirds of the members of the House present and voting.

PROCEDURE FOR AMENDMENT

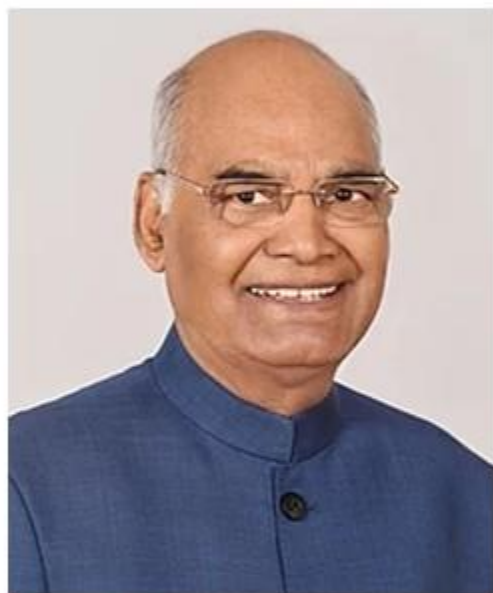


No provision for Joint sitting in case of Constitutional Amendment Bill

4 Each house must pass the bill separately. In case of a disagreement between the two houses, there is **no provision for holding a joint sitting of the two houses** for the purpose of deliberation and passage of the bill.

5 If the bill seeks to amend **the federal provisions of the Constitution**, it must also be ratified by the legislatures of half of the States by a simple majority, that is, majority of the members of the House present and voting.

PROCEDURE FOR AMENDMENT



President must give his assent to the Bill

- 6** After duly passed by both the Houses of Parliament and ratified by the State Legislatures, where necessary, the bill is presented to the President for assent.
- 7** The President must give his assent to the bill. **He can neither withhold his assent to the bill nor return the bill for reconsideration of the Parliament.**
- 8** After the President's assent, the bill becomes an Act (i.e., a Constitutional Amendment Act) and the Constitution stands amended in accordance with the terms of the Act.

TYPES OF AMENDMENTS

1 Article 368 provides for two types of amendments, that is, **by a special majority of Parliament and also through the ratification of half of the States by a simple majority.**

2 But, some other articles provide for the amendment of certain provisions of the Constitution by a simple majority of Parliament, that is, a majority of the members of each House present and voting (similar to the ordinary legislative process).

3 Notably, **these amendments are not deemed to be amendments of the Constitution for the purposes of Article 368.**

4 Therefore, the Constitution can be amended in three ways:

- a) Amendment by simple majority of the Parliament.
- b) Amendment by special majority of the Parliament and
- c) Amendment by special majority of the Parliament and the ratification of half of the State Legislatures.

TYPES OF MAJORITIES

Before we go further into various amendments, let us take a look at the types of majorities so as to familiarize ourselves with some basic concepts



- 1 There is no explicit classification of majorities in the Indian Constitution.
- 2 But, a careful reading of different articles in Indian Constitution would provide an idea about four types of majorities.
- 3 They are Absolute Majority, Effective Majority, Simple Majority and Special Majority.

TYPES OF MAJORITIES

1

SIMPLE MAJORITY

Example:

- **Total strength of Lok Sabha: 545**
- **Vacant Seats: 5**
- **Members present: 500**
- **Members present, but decide to abstain / not to vote: 50**
- **Members present and voting: $500 - 50 = 450$**
- **Simple Majority in this case would be: 226**

1

Simple majority or working majority refers to majority of more than 50% of the members present and voting.

2

Most of the normal motions and bills in the house such as No-confidence Motion, Motion of Thanks, Censure Motion, Adjournment Motion, Money Bills, Ordinary Bills etc.

TYPES OF MAJORITIES

2

ABSOLUTE MAJORITY

Example:

1. **Total strength of Lok Sabha: 545**
Absolute Majority: 273
2. **Total strength of Rajya Sabha: 245**
Absolute Majority: 123



- 1 Absolute majority refers to the majority of **more than 50% of the total strength of the house.**
- 2 There are instances when such majority is needed with other majority which would be thus called special majority.

TYPES OF MAJORITIES

3

EFFECTIVE MAJORITY

Example:

- **Total strength of Lok Sabha: 545**
- **Vacant Seats: 5**
- **Effective Strength: $545 - 5 = 540$**
- **Members present, but decide to abstain / not to vote: 50**
- **Members present and voting: $540 - 50 = 490$**
- **Effective Majority: $(490/2) + 1 = 246$**

- 1 Effective Majority of house means more than 50% of the effective strength of the house.
- 2 This implies that out of the total strength, we deduct the absent and vacant seats.
- 3 In constitution of India, the “all the then members present” indicates an effective majority.
- 4 In Constitution, effective majorities are needed for removal of Vice-President, Deputy Chairman of Rajya Sabha, Lok Sabha speaker and Deputy Speaker.

TYPES OF MAJORITIES

4

SPECIAL MAJORITY

All types of majorities other than the absolute, effective or simple majority is known as the special majority.

EXAMPLE 1

SPECIAL MAJORITY AS PER ARTICLE 249

**CASES WHERE SPECIAL MAJORITY
AS PER ARTICLE 249 IS USED:**

To pass the Rajya Sabha resolution to empower the Parliament to make laws in the state list. (valid up to 1 year, but can be extended any number of times).

- 1 Special majority as per article 249 requires a majority of 2/3rd members present and voting.
- 2 For example, if out of the 245 members in Rajya Sabha, if only 150 are present and voting, then the special majority required as per article 249 would be 101.

TYPES OF MAJORITIES

4

SPECIAL MAJORITY

EXAMPLE 2

SPECIAL MAJORITY AS PER ARTICLE 352

CASES WHERE THIS TYPE OF SPECIAL MAJORITY IS USED:

- To pass a constitutional amendment bill which does not affect federalism.
- Approval of national emergency as per Article 352 requires this type of special majority in both houses.

- 1 Special majority as per article 368 requires a majority of 2/3rd members present and voting supported by more than 50% of the total strength of the house.
- 2 This type of majority is used for most of the Constitutional amendment bills.
- 3 To pass a constitution amendment bill in Rajya Sabha, in addition to getting the support of 123 members, the bill should be favoured by more than 2/3rd of the members present and voting.

INDIAN POLITY

TYPES OF MAJORITIES

4

SPECIAL MAJORITY

SPECIAL MAJORITY AS PER ARTICLE 368 + STATE RATIFICATION

EXAMPLE 3

CASES WHERE SPECIAL MAJORITY AS PER ARTICLE 368 AND STATE RATIFICATION IS USED:

- To pass a constitutional amendment bill which affects federalism like the position/powers of High Court.

- 1 This type of special majority is required when a constitutional amendment bill tries to change the federal structure.
- 2 Special majority as per article 368 plus state ratification requires a majority of 2/3rd members present and voting supported by more than 50% of the state legislatures by a simple majority.
- 3 A good example would be the bill of the National Judicial Appointments Commission (NJAC).

TYPES OF MAJORITIES

4

SPECIAL MAJORITY

EXAMPLE 4

SPECIAL MAJORITY AS PER ARTICLE 61



Impeachment of the President

- 1 Special majority as per article 61 requires a majority of **2/3rd** members of the total strength of the house.
- 2 For example purpose(say): In Lok Sabha, the special majority as per article 61 is 364 while in Rajya Sabha, the special majority as per article 61 is 164.

TYPES OF AMENDMENTS

1 Article 368 provides for two types of amendments, that is, **by a special majority of Parliament and also through the ratification of half of the States by a simple majority.**

2 But, some other articles provide for the amendment of certain provisions of the Constitution by a simple majority of Parliament, that is, a majority of the members of each House present and voting (similar to the ordinary legislative process).

3 Notably, **these amendments are not deemed to be amendments of the Constitution for the purposes of Article 368.**

4 Therefore, the Constitution can be amended in three ways:

- a) Amendment by simple majority of the Parliament.
- b) Amendment by special majority of the Parliament and
- c) Amendment by special majority of the Parliament and the ratification of half of the State Legislatures.

TYPES OF AMENDMENTS**1****BY SIMPLE MAJORITY OF
PARLIAMENT**

A number of provisions in the Constitution can be amended by a simple majority of the two houses of Parliament outside the scope of Article 368. These provisions include:

- | | |
|---|--|
| 1 Admission or establishment of new States. | 5 Quorum in Parliament. |
| 2 Formation of new States and alteration of areas, boundaries of existing states. | 6 Salaries and allowances of the members of Parliament. |
| 3 Abolition or creation of legislative councils in States. | 7 Rules of procedure in Parliament |
| 4 Second Schedule-emoluments, allowances, privileges and so on of the president, the Governors, the Speakers, judges, etc. | 8 Privileges of the Parliament, its members and its committees. |

TYPES OF AMENDMENTS

1

BY SIMPLE MAJORITY OF
PARLIAMENT

- 9 Use of English language in Parliament.
- 10 Number of puisne judges in the Supreme Court.
- 11 Conferment of more jurisdiction on the Supreme Court.
- 12 Use of official language.
- 13 Citizenship acquisition and termination.

TYPES OF AMENDMENTS

1

BY SIMPLE MAJORITY OF
PARLIAMENT

14 Elections of Parliament and State Legislatures.

15 Delimitation of Constituencies

16 Union Territories.

17 Fifth Schedule- Administration of scheduled areas and scheduled tribes

18 Sixth Schedule- Administration of tribal areas.

TYPES OF AMENDMENTS

2

BY SPECIAL MAJORITY OF
PARLIAMENT

For example, the maximum strength of the Lok Sabha is 552 whereas the total membership will depend on the current strength of the House.

1

The majority of the provisions in the Constitution need to be amended by a special majority of the Parliament, that is, a majority (that is more than 50%) of the total membership of each House and a majority of two-thirds of the members of each House present and voting.

2

The expression “total membership” means the total number of members comprising the house irrespective of fact whether there are vacancies or absentees.

TYPES OF AMENDMENTS

2

BY SPECIAL MAJORITY OF
PARLIAMENTDirective Principles
Of
State Policy**FUNDAMENTAL RIGHTS**
of Indian Citizens

4

The provisions which can be amended by this way includes:

- i. Fundamental Rights
- ii. Directive Principles of State Policy and
- iii. All other provisions which are not covered by the first and third categories.

TYPES OF AMENDMENTS

3

BY SPECIAL MAJORITY OF PARLIAMENT
AND CONSENT OF STATES

***Federalism is an important
concept of our country***

- 1 Those provisions of the Constitution, which are related to the federal structure of the polity can be amended by a special majority of the Parliament and also with the consent of half of the State legislatures by simple majority.
- 2 If one or some or all the remaining States take no action on the bill, it does not matter, the moment half of the States give their consent, the formality is completed.
- 3 There is no time limit within which the States should give their consent to the bill.

TYPES OF AMENDMENTS

3

BY SPECIAL MAJORITY OF PARLIAMENT
AND CONSENT OF STATES

4

The following provisions can be amended in this way:

- 1) Election of the President and its manner
- 2) Extent of the executive power of the Union and the States.
- 3) Supreme Court and High Courts.
- 4) Distribution of legislative powers between the Union and the States.
- 5) Any of the lists in **Seventh Schedule**.
- 6) **Representation of the States in Parliament**.
- 7) Power of Parliament to amend the Constitution and its procedure (Article 368 itself).

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